

LOUDOUN COUNTY SCHOOL BOARD AIDES

A. Status of Board Aides and Applicability of Policies and Procedures.1. Appointment and Duration.

- a. Board Aides are appointed by and serve solely at the pleasure, discretion, and will of their respective School Board Members. There is thus no established timeframe for the length of any particular Board Aide's appointment. Nevertheless, when a Board Member leaves their position on the Board, the appointment of their respective Board Aide will end as well.

2. Applicability of LCPS Policies.

- a. Board Aides are appointees of elected public officials (i.e., School Board Members), who serve solely at the will of those elected public officials (and thus, fall exclusively under the direct supervision of said School Board members).
- b. Board Aides are therefore not generally subject to LCPS's personnel system, policies, regulations, processes or procedures (including, but not limited to, policies, regulations, processes, or procedures addressing employment compensation, discipline, termination, development, awards, and grievances).
- c. Board Aides are not considered "employees" as defined by the Fair Labor Standards Act ("FLSA"), and as such, are not covered by the provisions of the FLSA or its implementing regulations.
- d. Board Aide positions are not considered "employees" under Title VII of the Civil Rights Act of 1964 and therefore are not covered by its provisions.
- e. As appointees of Board Members, Board Aides must be aware of Policy 1030, A Code of Conduct for School Board Members, and Policy 1035, School Board norms, Protocol and Violations.
- f. Current LCPS employees are not eligible to serve as Board Aides.

3. Access to LCPS Resources.

- a. Given their access to LCPS resources, Board Aides are subject to LCPS policies and procedures pertaining to the use of LCPS equipment, systems, facilities, vehicles, and other resources.
- b. Prior to the issuance of, access to, or use of any LCPS equipment, systems, facilities, vehicles, or other resources by or to any Board Aides, they shall complete any necessary training and sign any applicable agreements or acknowledgments, including the LCPS-provided non-disclosure agreement (NDA).

B. Job Duties.1. Representation in Official Capacity.

- a. Board Aides cannot officially represent Board Members in meetings or events. This includes School Board meetings, committee meetings, or

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instances where Board Members act as liaisons.

- b. Upon their respective Board Member's request, Board Aides may attend, observe, and take notes at any open or public meetings of the School Board or other group.

2. Communication and Meetings.

- a. Board Aides (on behalf of their Board Members) may request explanation or information directly from LCPS Cabinet Members if the information is readily available, accessible, and/or known to the Cabinet Members.
- b. Whenever possible, all other requests for detailed explanations or information that is not readily available will be directed through the LCPS Chief of Staff.
- c. Efforts that require significant research, per Policy 1035, may be forwarded by the Chief of Staff to the School Board Chair to determine if there is sufficient interest in the information from other Board Members. It is expected that Board Members will collaborate to prioritize such efforts to preclude overwhelming LCPS administrators/staff with requests.
- d. Board Aides, with Board Member discretion and approval, may attend meetings their respective Board Members have with Cabinet Members in a support capacity.
- e. For planning purposes, and to ensure sufficient resources, advance notice of a Board Aide's attendance of meetings with LCPS staff is requested.
- f. In order to streamline communications during such meetings, Board Aides should communicate any questions to staff through their respective Board Members.
- g. Board Aides cannot attend meetings in which confidential or privileged information may be discussed or shared.
- h. Board Aides should show respect for and work with School Board Members and LCPS employees in a collaborative and cooperative manner, in spite of potential differences of opinion that may arise on various matters.
- i. School Board Aides should conduct themselves in a manner that upholds the integrity of the School Board, its members, LCPS, and its employees. This includes refraining from actions that undermine the implementation of decisions made by the School Board.

C. Budget, Compensation and Benefits

1. Each year, the LCPS annual budget may include funds for individual School Board Members to use for Board Aides, materials and supplies, and other needs, at their discretion. Allocated funds are divided equally among the Board Members and may be shared between Members.

2. Each respective Board Member determines, based on a semi-annual review, if their Board Aide's pay rate is appropriate due to a permanent change of the Board Aide's primary responsibilities.

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3. Board Aides do not receive any form of pay adjustments/increases provided to LCPS employees. The salaries of Board Aides change only when directed and authorized by the supervising Board Member, within the annual budget adopted by the School Board.

4. For payroll purposes, Board Aides shall record time worked through Oracle Employee Self-Service or such other system used by LCPS for timekeeping purposes. Timecards must be submitted within LCPS established deadlines. Each Board Member is responsible for monitoring their respective Board Aides' timekeeping with respect to hours worked.

5. Board Aide positions do not receive any form of overtime (e.g., "time-and-a-half") pay nor do they receive any form of compensatory time or personal leave (as defined by LCPS policy or in the LCPS Employee Handbook).

6. Board Aides may receive pay for any work they perform, which is authorized by the School Board Member by whom they were appointed, during periods when the LCPS Administration Building is unexpectedly closed for emergencies.

7. Board Aides whose regular assignment is for 20 hours or more per week are eligible to participate in LCPS health insurance plans, deferred compensation plans, and other voluntary benefits, as applicable. LCPS Human Resources and Talent Development ("HRTD") personnel will review Board Aides' timecards on a quarterly basis to verify such Board Aides' adherence to the minimum standard/eligibility for these benefits. Board Aides whose regular assignment is for less than 20 hours per week or who serve in an interim capacity are not eligible to receive benefits and are paid only for hours worked.

D. Job Performance, Work Activity and Management Oversight.

1. Each Board Member determines their Board Aide's job responsibilities, duties, and work activity and provides work direction and oversight. Board Aides' compensable work hours that are paid for with LCPS funds must be in support of School Board needs and activities.

2. Each Board Aide will be provided with a laptop and cell phone to be used for work purposes.

3. It is the responsibility of each School Board Member to monitor and evaluate the job performance of their Board Aide. The format and frequency of performance evaluations, if any, are at the respective Board Member's discretion.

4. It is the responsibility of each Board Member to decide upon the type of corrective action, if needed, for their own Board Aide and to implement the corrective action.

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However, nothing in this Policy shall prevent the School Board and/or LCPS from taking any action to protect LCPS personnel, property, or resources it deems appropriate in the event it becomes aware of any impropriety, performance-related issues, or concerns of misconduct by the Board Aide. While the Board at-large may not have oversight over individual Board Aides, per Policy 1035, Board members could face disciplinary actions (e.g., private or public warnings or reprimands, public censure, removal from being Chair of one or more committees, or removal from committees) for the acts of their respective Board Aides' conduct.

E. Communications. The following channels of communications will be maintained to support School Board Members and Board Aides. In no situation shall a School Board Aided forward messages of confidential matters from the Superintendent/Cabinet without concurrence from the Superintendent, or the Superintendent's Designee.

General Email. The Department of Digital Innovation ("DDI") will expand the existing LCSB email group to include a Board Aide, once the Board Aide's Non-Disclosure Agreement ("NDA") is signed. The existing LCSB email group is used for communication that is routine in nature.

1. Board Members should use Board Aides' LCPS email accounts when discussing/forwarding matters concerning School Board/LCPS business to ensure privacy and to protect personally identifiable information.

2. Attorney-Client Privileged Communications. School Board Members shall not forward any emails containing attorney-client privileged information to Board Aides.

3. Telephone. Board Aides will utilize the message service provided on their LCPS cell phone for all official business.

4. Confidential Information. Within Board Member's discretion, and only as provided for in the NDAs Board Members and Board Aides execute, Board Members may provide their respective Board Aides with access to confidential financial, proprietary, personnel, student, or other sensitive information and records or any other information that is deemed by the discloser as confidential ("Confidential Information") as may be necessary, as long as there is a legitimate educational interest for such access. However, Board Aides shall not have access to information marked as "Highly Confidential", including confidential legal advice and attorney work product.

- a. To the extent Board Aides inadvertently become aware of and/or in possession of any Confidential Information or Highly Confidential Information, Board Aides must not disclose, reproduce, or use Confidential Information, in whole or in part. Board Aides must, within ten (10) days after the end of their employment, return any documents, records, emails, and tangible materials in their possession that contain any Confidential Information and any other School Board records.

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- b. A Board Aide's unauthorized disclosure or use of Confidential Information (and Highly Confidential Information, where access to such information was impermissibly obtained) may cause substantial harm and damage to the School Board and its members. In the event of a Board Aide's breach or threatened breach of the terms of the Board Aide NDA, the School Board shall be entitled to an injunction (a judicial order that restrains such breach or threatened breach) against that Board Aide, prohibiting any unauthorized disclosure or further use of Confidential Information. Any such injunctive relief shall be in addition to, and not in lieu of, any appropriate monetary damages and/or termination of employment.
- c. If the Board Aide is confronted with legal action to disclose Confidential Information, or be subpoenaed to disclose Confidential Information, the Board Aide shall immediately notify their respective School Board Member and the Division Counsel's Office and shall cooperate with the School Board and Division Counsel in cooperating or contesting with such a disclosure, as directed to do.
- d. In accordance with Policy 7566 and its accompanying Regulation, School Board Members must "maintain the privacy and security of passwords and accounts and shall not share their passwords or network access" with Board Aides (or anyone else). Access for Board Aides to read, add, and remove calendar items on their supervising School Board Member's calendar will be at the discretion of the School Board Member.

F. Telecommuting. Board Aides may work from home or other alternate locations with the approval of their respective Board Member. For the purposes of this policy, telecommuting is considered to be the proactive decision, with approval of the Board Member, to conduct business at a location other than the LCPS Administration Building.

G. Participation in Political Activities

1. Generally. Board Aide positions are held to the highest standards of conduct. While Board Aides are not employees of LCPS, they shall generally be governed by Policy 7524 (Staff Participation in Political Activities), in the following regards:

- a. While Board Aides have the right to engage in political activity, Board Aides' participation in such political activities must not adversely affect the performance of their duties as a Board Aide, should not take place during the hours in which they are being paid with School Board funds, and shall be in compliance with all applicable laws, rules, and regulations.
- b. No School Board resources shall be used by Board Aides for non-LCPS business, including, but not limited to, use of the email system, vehicles, buildings, copying machines or other assets. Specifically, no LCPS resources (including, but not limited to, office space, equipment,

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computers, telephones, mobile devices, internet access, etc.) shall be used for any type of political activity or campaigning, and Board Aides shall not perform any political activity or campaigning during the hours in which they are being paid with LCPS funds.

- c. Board Aides shall not use their positions to further a political cause, campaign, or support any issue on any referendum matter during the hours in which they are being paid with School Board funds. Nor shall Board Aides distribute campaign materials during school hours or LCPS-sponsored events (to include School Board meetings), except when such distribution is relevant to the curriculum and current candidates for the same office are treated equitably.
- d. Board Aides shall not suggest in any official work capacity that they support or oppose a candidate for election to any office or any particular political party.
- e. Unless otherwise permitted by Policy 8640 (Disclosure of Student Personally Identifiable Information and Other Educational Records) or other applicable School Board policy, regulation or federal or state law, Board Aides shall not discuss internal confidential affairs.
- f. These restricted and prohibited activities are not intended to limit the rights of Board Aides to support or oppose any political candidate or party on their own time or to prevent them from performing duties associated with the official, permissible duties of the School Board Members who have appointed them. Such restricted and prohibited activities are intended to assure that no public funds and/or resources are used to support any candidate for public office, and to assure that the public is not given the impression that the School Board and/or School Division support or oppose any political candidate or party.
- g. Board Aides planning to act as a campaign manager or seek, accept an appointment, or be elected to public office must give prior notice of their intentions to their respective School Board Member. Board Members will review their respective Board Aides' notice with their Board Aides to avoid any conflicts of interest and to maintain satisfactory performance standards.

H. Other Employment. Board Aides shall consult with their respective Board Members on any other concurrent employment, and such respective Board Members retain discretion over such matters. Upon the respective Board Member's discretion, a Board Aide may be required to obtain written approval from their Board member prior to accepting outside employment. Outside employment with or for the Board member and/or the Board member's private employment or business activities is deemed a conflict with the Board Aide's ability to perform their job for the purposes of this section. Board Aides and Board Members should also reference and comply with relevant provisions of the Virginia State and Local Government Conflict of Interests Act.

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I. Limitations on Scope of Duties.

1. Under no circumstances shall Board Aides be compelled by any Board Member to perform any activities for a Board Member related to their political campaigns, private employment, or any other activity that is not directly related to LCPS business.

2. Under no circumstances shall Board Aides be compelled or permitted to perform activities of a personal nature for their Board Member during the hours they are performing work involving official LCPS business.

J. Board Aide Recourse. Pursuant to Section A.2 of this Board Aide policy, Board Aides are not covered by LCPS personnel grievance policies.

K. Training.

1. If requested, HRTD will provide training to all School Board Members in equitable and legal candidate screening, interviewing, and hiring.

2. All Board Aides will participate in training on, the Family Educational Rights and Privacy Act of 1974, 20 USC 1232g ("FERPA"), Individuals with Disabilities Education Act ("IDEA"), Virginia Freedom of Information Act ("VFOIA") and Federal and Virginia Special Education Regulations, equity, communication, and other relevant training related to their positions.

L. Non-Disclosure Agreements. All Board Aides must sign NDAs before beginning their official work duties, and as appropriate during the course of their appointment, to ensure relevant confidentiality is maintained. Board Aide NDAs shall be updated and signed by Board Aides each time there are material updates to this Policy. The obligations imposed by the Board Aide NDA shall not expire with the expiration or termination of employment. Board Aide NDAs will otherwise be signed by Board Aides on an annual basis each January.

Adopted: 6/23/20

Revised: 9/24/24

Legal Refs: [34 CFR Part 99](#)

Cross Refs: [Policy 1030, A Code of Conduct for School Board Members](#), [Policy 1035, School Board Norms, Protocols and Violations](#), [Policy 7566, Employee Technology Acceptable/Responsible Use](#); [Policy 7524, Staff Participation in Political Activities](#)